

**SUBSTITUTE FOR
SENATE BILL NO. 569**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending sections 5431, 5841, 13104, and 16315 (MCL 333.5431,
333.5841, 333.13104, and 333.16315), section 5431 as amended by
2002 PA 691, section 5841 as amended by 2015 PA 91, section 13104
as amended by 2010 PA 375, and section 16315 as amended by 2020 PA
169.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

- 1 Sec. 5431. (1) A health professional in charge of the care of
2 a newborn infant or, if none, the health professional in charge at
3 the birth of an infant shall administer or cause to be administered
4 to the infant a test for each of the following:
5 (a) Phenylketonuria.



1 (b) Galactosemia.
2 (c) Hypothyroidism.
3 (d) Maple syrup urine disease.
4 (e) Biotinidase deficiency.
5 (f) Sickle cell anemia.
6 (g) Congenital adrenal hyperplasia.
7 (h) Medium-chain acyl-coenzyme A dehydrogenase deficiency.
8 (i) Other treatable but otherwise disabling conditions as
9 designated by the department.

10 (2) The informed consent requirements of sections 17020 and
11 17520 do not apply to the tests required under subsection (1). The
12 tests required under subsection (1) ~~shall~~**must** be administered and
13 reported within a time and under conditions prescribed by the
14 department. The department may require that the tests be performed
15 by the department.

16 (3) If the results of a test administered under subsection (1)
17 are positive, the results ~~shall~~**must** be reported to the infant's
18 parents, guardian, or person in loco parentis. A person is in
19 compliance with this subsection if the person makes a ~~good faith~~
20 **good-faith** effort to report the positive test results to the
21 infant's parents, guardian, or person in loco parentis.

22 (4) Subject to the annual adjustment required under this
23 subsection and subject to subsection (6), if the department
24 performs 1 or more of the tests required under subsection (1), the
25 department may charge a fee for the tests of not more than \$53.71.
26 The department shall adjust the amount prescribed by this
27 subsection annually by an amount determined by the state treasurer
28 to reflect the cumulative annual percentage change in the Detroit
29 ~~consumer price index.~~ **Consumer Price Index.** As used in this



1 subsection, "~~Detroit consumer price index~~" **Consumer Price Index**
 2 means the most comprehensive index of consumer prices available for
 3 the ~~Detroit~~ **Detroit-Warren-Dearborn** area from the ~~bureau of labor~~
 4 ~~statistics~~ **Bureau of Labor Statistics** of the United States
 5 ~~department of labor~~ **Department of Labor**.

6 (5) A person who violates this section or a rule promulgated
 7 under this part is guilty of a misdemeanor.

8 (6) The department shall provide for a hardship waiver of the
 9 fee authorized under subsection (4) under circumstances found
 10 appropriate by the department.

11 (7) The department shall do all of the following in regard to
 12 the blood specimens taken for purposes of conducting the tests
 13 required under subsection (1):

14 (a) By April 1, 2000, develop a schedule for the retention and
 15 disposal of the blood specimens used for the tests after the tests
 16 are completed. The schedule ~~shall~~ **must** meet at least all of the
 17 following requirements:

18 (i) Be consistent with nationally recognized standards for
 19 laboratory accreditation and federal law.

20 (ii) Require that the disposal be conducted in compliance with
 21 section 13811.

22 (iii) Require that the disposal be conducted in the presence of
 23 a witness. For purposes of this subparagraph, the witness may be an
 24 individual involved in the disposal or any other individual.

25 (iv) Require that a written record of the disposal be made and
 26 kept, and that the witness required under subparagraph (iii) signs
 27 the record.

28 (b) Allow the blood specimens to be used for medical research
 29 during the retention period established under subdivision (a), as



1 long as the medical research is conducted in a manner that
2 preserves the confidentiality of the test subjects and is
3 consistent to protect human subjects from research risks under
4 ~~subpart A of part 46 of subchapter A of title 45 of the code of~~
5 ~~federal regulations.~~ **45 CFR 46.101 to 46.124.**

6 (8) The department shall rewrite its pamphlet explaining the
7 requirements of this section when the supply of pamphlets in
8 existence on March 15, 2000 is exhausted. When the department
9 rewrites the explanatory pamphlet, ~~it~~ **the department** shall include
10 at least all of the following information in the pamphlet:

11 (a) The nature and purpose of the testing program required
12 under this section, including, but not limited to, a brief
13 description of each condition or disorder listed in subsection (1).

14 (b) The purpose and value of the infant's parent, guardian, or
15 person in loco parentis retaining a blood specimen obtained under
16 subsection (9) in a safe place.

17 (c) The department's schedule for retaining and disposing of
18 blood specimens developed under subsection (7)(a).

19 (d) That the blood specimens taken for purposes of conducting
20 the tests required under subsection (1) may be used for medical
21 research pursuant to subsection (7)(b).

22 (9) In addition to the requirements of subsection (1), the
23 health professional described in subsection (1) or the hospital or
24 other facility in which the birth of an infant takes place, or
25 both, may offer to draw an additional blood specimen from the
26 infant. If such an offer is made, it ~~shall~~ **must** be made to the
27 infant's parent, guardian, or person in loco parentis at the time
28 the blood specimens are drawn for purposes of subsection (1). If
29 the infant's parent, guardian, or person in loco parentis accepts



1 the offer of an additional blood specimen, the blood specimen ~~shall~~
2 **must** be preserved in a manner that does not require special storage
3 conditions or techniques, including, but not limited to,
4 lamination. The health professional or hospital or other facility
5 employee making the offer shall explain to the parent, guardian, or
6 person in loco parentis at the time the offer is made that the
7 additional blood specimen can be used for future identification
8 purposes and should be kept in a safe place. The health
9 professional or hospital or other facility making the offer may
10 charge a fee that is not more than the actual cost of obtaining and
11 preserving the additional blood specimen.

12 **(10) Beginning for the fiscal year ending September 30, 2027,**
13 **and for each fiscal year thereafter through September 30, 2029,**
14 **\$1,000,000.00 of the collected newborn screening fees and any**
15 **interest and earnings for those fees is transferred to and must be**
16 **deposited into the general fund.**

17 Sec. 5841. (1) All or part of the charges for the medical care
18 and treatment of a child or youth with special health care needs
19 must be paid to the department of treasury by the child, parent, or
20 spouse, if that individual has the ability to pay. The payment must
21 be in the amount and at a rate determined by agreement between the
22 individual and the department. Upon treatment of the child or youth
23 with special health care needs, the department shall furnish the
24 department of treasury information required to keep a correct
25 account of the money due this state from the child, parent, or
26 spouse. The department of treasury shall credit the parent
27 participation payments to the parent participation fund.

28 (2) The department may modify or cancel an agreement made
29 under this section based on economic or other factors and shall



1 report that action to the department of treasury.

2 (3) The department of treasury may accept and issue a receipt
3 for an amount due under an agreement or modification to an
4 agreement under this section.

5 (4) **Beginning for the fiscal year ending September 30, 2027,**
6 **and for each fiscal year thereafter through September 30, 2029,**
7 **\$220,000.00 of the money in the parent participation fund in**
8 **subsection (1) and any interest and earnings for those fees is**
9 **transferred to and must be deposited into the general fund.**

10 Sec. 13104. (1) An individual shall not tattoo, brand, or
11 perform body piercing on another individual unless the tattooing,
12 branding, or body piercing occurs at a body art facility licensed
13 under this part. Any tattooing, branding, or body piercing
14 occurring in this state other than at a facility licensed under
15 this part is considered an imminent danger under section 2251 or
16 2451 and the department or a local health department shall order
17 the immediate cessation of that activity in the manner prescribed
18 in this act.

19 (2) The owner or operator of a body art facility shall apply
20 to the department for a body art facility license under this part
21 on a form provided by the department and at the time of application
22 shall pay to the department the appropriate fee prescribed under
23 subsection (4). The department shall issue a license on an annual
24 basis to a body art facility that meets the requirements of this
25 part or for a time period not to exceed 14 consecutive days to a
26 temporary body art facility that meets the requirements of this
27 part.

28 (3) If the department determines that the application is
29 complete and the body art facility proposed or operated by the



1 applicant meets the requirements of this part and any rules
2 promulgated under this part, the department shall issue the
3 appropriate license to the applicant for the operation of that body
4 art facility. Except for a temporary license issued under this
5 part, the license is effective for up to 1 year and expires at 12
6 midnight on December 31. A temporary license issued under this part
7 is effective for not more than 14 consecutive days and expires at
8 12 midnight on the date prescribed on the temporary license.

9 (4) Except as otherwise provided in this part, the applicant
10 shall pay 1 of the following fees at the time of application for a
11 body art facility license:

12 (a) For an annual license \$ 500.00.

13 (b) For a temporary license to operate a body art
14 facility at a fixed location for not more than
15 14 consecutive days \$ 150.00.

16 (5) An applicant for a new annual license that is filed on or
17 after July 1 shall only pay 50% of the fee prescribed in subsection
18 (4)(a). A licensee that fails to submit an application for a
19 license renewal on or before December 1, in addition to the license
20 fee under subsection (4)(a), shall pay an additional \$250.00 late
21 fee.

22 (6) The department shall issue a duplicate license upon
23 request of a licensee and the payment of a duplicate license fee of
24 \$50.00.

25 (7) Unless a different distribution is provided for in a cost
26 reimbursement program under sections 2471 to 2498, the department
27 shall distribute a portion of a fee collected under this section
28 from an applicant or licensee to a local health department
29 authorized to enforce this part under section 13108 as follows:



1 (a) From the annual license fee under subsection (4) (a) or (5)
 2 and, if applicable, from the late fee under subsection (5), 50%.

3 (b) From the temporary license fee under subsection (4) (b),
 4 75%.

5 (c) From the duplicate license fee under subsection (6), 50%.

6 (8) The department shall adjust the fees prescribed in this
 7 section annually by an amount determined by the state treasurer to
 8 reflect the cumulative annual percentage change in the Detroit-Ann
 9 Arbor-Flint ~~consumer price index~~, **Consumer Price Index**, but not by
 10 an amount that exceeds 5%. As used in this subsection, "Detroit-Ann
 11 Arbor-Flint ~~consumer price index~~" **Consumer Price Index**" means the
 12 most comprehensive index of consumer prices available for the
 13 ~~Detroit, Detroit-Warren-Dearborn~~, Ann Arbor, and Flint areas from
 14 the ~~bureau of labor statistics~~ **Bureau of Labor Statistics** of the
 15 United States ~~department of labor~~. **Department of Labor**.

16 (9) **Beginning for the fiscal year ending September 30, 2027,**
 17 **and for each fiscal year thereafter through September 30, 2029,**
 18 **\$100,000.00 of the collected body art facility license fees and any**
 19 **interest and earnings for those fees is transferred to and must be**
 20 **deposited into the general fund.**

21 Sec. 16315. (1) The health professions regulatory fund is
 22 established in the state treasury. Except as otherwise provided in
 23 this section, the state treasurer shall credit the fees collected
 24 under sections 16319 to 16349 to the health professions regulatory
 25 fund. Except as otherwise provided in this section, the money in
 26 the health professions regulatory fund ~~shall~~ **must** be expended only
 27 as provided in subsection (5).

28 (2) The state treasurer shall direct the investment of the
 29 health professions regulatory fund. Interest and earnings from



1 health professions regulatory fund investment ~~shall~~**must** be
2 credited to the health professions regulatory fund.

3 (3) The unencumbered balance in the health professions
4 regulatory fund at the close of the fiscal year ~~shall remain~~
5 **remains** in the health professions regulatory fund and ~~shall~~**does**
6 not revert to the general fund.

7 (4) The health professions regulatory fund may receive gifts
8 and devises and other money as provided by law.

9 (5) The department shall use the health professions regulatory
10 fund to carry out its powers and duties, ~~under this article,~~
11 ~~article 7, and article 8,~~ including, but not limited to,
12 reimbursing the department of attorney general for the reasonable
13 cost of services provided to the department under this article,
14 article 7, and article 8.

15 (6) The nurse professional fund is established in the state
16 treasury. Of the money that is attributable to per-year license
17 fees collected under section 16327, the state treasurer shall
18 credit \$8.00 of each individual annual license fee collected to the
19 nurse professional fund. The money in the nurse professional fund
20 ~~shall~~**must** be expended only as provided in subsection (9).

21 (7) The state treasurer shall direct the investment of the
22 nurse professional fund, and shall credit interest and earnings
23 from the investment to the nurse professional fund. The nurse
24 professional fund may receive gifts and devises and other money as
25 provided by law.

26 (8) The unencumbered balance in the nurse professional fund at
27 the close of the fiscal year ~~shall remain~~**remains** in the nurse
28 professional fund and ~~shall~~**does** not revert to the general fund.

29 (9) The department of health and human services shall use the



1 nurse professional fund each fiscal year only as follows:

2 (a) To promote safe patient care in all nursing practice
3 environments.

4 (b) To advance the safe practice of the nursing profession.

5 (c) To ensure a continuous supply of high-quality direct care
6 nurses, nursing faculty, and nursing education programs.

7 (d) To operate a nursing scholarship program.

8 (10) The pain management education and controlled substances
9 electronic monitoring and antidiversion fund is established in the
10 state treasury.

11 (11) The state treasurer shall direct the investment of the
12 pain management education and controlled substances electronic
13 monitoring and antidiversion fund. Interest and earnings from
14 investment of the pain management education and controlled
15 substances electronic monitoring and antidiversion fund ~~shall~~**must**
16 be credited to the pain management education and controlled
17 substances electronic monitoring and antidiversion fund.

18 (12) The unencumbered balance in the pain management education
19 and controlled substances electronic monitoring and antidiversion
20 fund at the close of the fiscal year ~~shall remain~~**remains** in the
21 pain management education and controlled substances electronic
22 monitoring and antidiversion fund and ~~shall~~**does** not revert to the
23 general fund. The pain management education and controlled
24 substances electronic monitoring and antidiversion fund may receive
25 gifts and devises and other money as provided by law. Twenty
26 dollars of the license fee received by the department under section
27 16319 ~~shall~~**must** be deposited with the state treasurer to the
28 credit of the pain management education and controlled substances
29 electronic monitoring and antidiversion fund. The department shall



1 use the pain management education and controlled substances
2 electronic monitoring and antidiversion fund only in connection
3 with programs relating to pain management education for health
4 professionals, preventing the diversion of controlled substances,
5 and development and maintenance of the electronic monitoring system
6 for controlled substances data required by section 7333a.

7 ~~(13) For the fiscal year ending September 30, 2020 only,~~
8 ~~\$10,000,000.00 of the money in the health professions regulatory~~
9 ~~fund is transferred to and must be deposited into the general fund.~~